

		generally and thus fail to differentiate between representations allegedly made by Adidev and those made by TP-Link Systems, Inc. In addition, the causes of action fail to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written, as required for fraud claims against a corporation. (<i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.) Accordingly, the demurrer to the third and fourth causes of action on this ground is SUSTAINED with 20 days leave to amend. <i>Counsel for Adidev shall give notice.</i>
10.	Dodd v. Ford Motor Company 25-1465355	Before the Court is a Demurrer by defendant Ford Motor Company ("Ford") to plaintiff's First Amended Complaint ("FAC"). The Demurrer is OVERULED as to the 1st through 3rd causes of action and SUSTAINED as to the 4th and 6th causes of action, with 14 days leave to amend. Song Beverly Act claims (1st through 4th causes of action): Ford argues the Song Beverly Act (SBA) claims (1st through 4th causes of action) are barred by <i>Code of Civil Procedure</i> §871.21. The Court rejects Defendant's argument the six-year statute of repose under <i>Code of Civil Procedure</i> section 871.21(b) bars Plaintiffs' claims under the SBA. The statute of limitations and repose embodied in <i>Section 871.21</i> became effective on January 1, 2025. Plaintiffs purchased their vehicle on December 13, 2018 (FAC ¶7) As of the effective date of <i>Section 871.21</i>, the six year period for filing a complaint had already run. "Generally, statutes operate prospectively only." (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475) "A statute may be applied retroactively only if it contains express language of retroactivity or if other sources provide a clear and unavoidable implication that the Legislature intended retroactive application." (<i>Ibid.</i>) "[T]he court must inquire whether, in a given case, that retrospective application may violate due process by in effect eliminating the plaintiff's right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all." (<i>Aronson v. Superior Ct.</i> (1987) 191 Cal.App.3d 294, 297; see also, <i>Rosefield Packing Co. v. Superior Ct. in & for City & Cnty. of San Francisco</i> (1935) 4 Cal. 2d 120, 122-23- "If the statute operates immediately to cut off the existing remedy, or within so short a time as to give the party no reasonable opportunity to exercise his remedy, then the retroactive application of it is unconstitutional as to such party.") Here, there is no express language of retroactivity in the statute, and Defendant failed to point to any other source showing the Legislature intended retroactive application.

As the demurrer to the 1st through 3rd causes of action is based solely on *Code of Civil Procedure §871.21*, the demurrer is **OVERRULED** as to these three causes of action.

4th Cause of Action – Breach of Implied Warranty

Ford also argues that the 4th cause of action for breach of implied warranty is barred by the four-year statute of limitations in *Commercial Code §2725*. This argument has merit.

A cause of action for breach of implied warranty of merchantability accrues upon tender of delivery. (*Cardinal Health 301, Inc. v. Tyco Elecs. Corp.* (2008) 169 Cal.App.4th 116, 134.) Here, plaintiffs allege they entered into a warranty contract on December 13, 2018. (FAC ¶ 7.) This allegation implies Plaintiffs purchased the vehicle and took possession, on that date. Plaintiffs allege the vehicle had the subject defects at time of sale on December 13, 2018. (FAC ¶54)

Plaintiff's reliance on *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 is misplaced as the *Mexia* court stated a cause of action could arise for its breach during the one-year time period, not that every undiscovered defect arises at discovery. Indeed, in *Mexia* it was agreed the claims were filed within the four year statute of limitations from the date of purchase, and the argument was whether the purchaser was required to notify the seller of discovered defects within the one-year duration of the implied warranty. (*Id.* at 1306, 1309-1311.)

Accordingly, the demurrer to the 4th cause of action is **SUSTAINED** with leave to amend.

6th cause of action – Fraudulent Inducement Concealment

Ford argues the 6th cause of action is barred by the statute of limitations and that Plaintiffs have failed to sufficiently plead delayed discovery.

Code of Civil Procedure §338(d) provides a three year statute of limitations for "an action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake."

"California law recognizes a general, rebuttable presumption, that plaintiffs have 'knowledge of the wrongful cause of an injury.' " (*Grisham v. Philip Morris U.S.A., Inc.* (2007) 40 Cal.4th 623, 638 (*Grisham*).) The delayed discovery rule rebuts that presumption and tolls the statute of limitations. (*Id.*; *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 803 ("Fox").)"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made

		earlier discovery despite reasonable diligence.” (<i>Fox, supra</i>, 35 Cal.4th at 808.) "When a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory." " (<i>Mills v. Forestex Co.</i> (2003) 108 Cal.App.4th 625, 641.) Here, the FAC contains general allegations regarding tolling yet lacks sufficient factual detail. (See FAC at ¶¶34-35) The 6th cause of action is premised on the allegation that Ford concealed transmission problems from the plaintiffs. However, there are essentially no specific facts pled as to tolling. Instead, Plaintiff asserts the conclusionary statement that "Plaintiff discovered Defendant's wrongful conduct alleged herein shortly before the filing of the complaint." (FAC ¶35) Plaintiff does not state what was discovered and when. For example, the FAC alleges plaintiff discovered problems with the transmission on July 1, 2021 and brought the vehicle in for repair. (FAC ¶12) However, that was more than 3 years before filing the complaint. As pled, plaintiffs have failed to sufficiently plead tolling of the statute of limitations and therefore the Demurrer is SUSTAINED, with leave to amend. Further, Ford’s argument under the economic loss rule (the “ELR”) fails here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (<i>Id.</i> at 843.) The Demurrer, to the extent it is based on the ELR, thus fails here. Where the Demurrer has been SUSTAINED, plaintiffs are granted 14 days leave to amend. <i>Ford shall give notice.</i>
11.	Richards v. General Motors, LLC 25-1469068	Before the Court is the Demurrer filed by Defendant General Motors, LLC (“GM”) on 2/19/26, directed to the First Amended Complaint which was belatedly filed by Plaintiffs Brad Richards and Ruth Preston (“Plaintiffs”) on 4/16/26. The Demurrer is OVERRULED. The Demurrer is directed solely to the Fifth Cause of Action for Fraudulent Inducement- Concealment. But the FAC now adequately asserts that Plaintiffs purchased the subject vehicle from GM’s authorized retail dealership. (FAC ¶ 9.) That is sufficient to allege a relationship requiring GM to disclose known defects. (See <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844.) The allegations as to the alleged defect in their vehicle (FAC ¶¶ 13, 14) adequately comport with their allegations as to the known “Transmission Defect” in these vehicles, under <i>Dhital</i>. The Demurrer is therefore OVERRULED.